

Multiple Choice (10 marks)

1. Under Article III, federal judicial power extends to which of the following kinds of cases?
 - (a) interpretation of treaties
 - (b) interpretation of admiralty laws
 - (c) disputes between states and foreign citizens
 - (d) all of the above
2. In most states, the division of homicide into degrees is distinguished according to which of the following?
 - (a) the causal relationship between the defendant's act and the resulting death.
 - (b) the attendant circumstances surrounding the death.
 - (c) the nature of the act causing the death.
 - (d) the defendant's state of mind at the time the killing was committed.
3. The President may appoint which of the following with the advice and consent of the Senate?
 - (a) Ambassadors
 - (b) public ministers and consuls
 - (c) justices of the Supreme Court
 - (d) all of the above
4. A merchant's irrevocable written offer (firm offer) to sell goods
 - (a) Must be separately signed if the offeree supplies a form contract containing the offer.
 - (b) Is valid for three months.
 - (c) Is nonassignable.
 - (d) Can not exceed a three-month duration even if consideration is given.
5. A defendant charged with first-degree murder shall be furnished with a list containing names and addresses of all prospective jurors
 - (a) upon court order.
 - (b) upon request.
 - (c) upon request and showing of good cause.
 - (d) under no circumstances.

True / False (10 marks)

Answer True or False

6. True or False: A life tenant must pay interest on mortgages secured against the property they occupy.
7. True or False: A valid treaty always prevails over a congressional act, regardless of the order in which they were enacted.
8. True or False: The best evidence rule generally does not apply to collateral matters, public records, or when documents are not used to prove their contents.
9. True or False: An indigent person does not have the Sixth Amendment right to counsel during investigative surveillance.
10. True or False: A warranty of merchantability guarantees that the product will meet the buyer's specific goals and expectations in all circumstances.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the legal responsibilities of a land possessor towards an undiscovered trespasser under common law, particularly focusing on the implications of natural conditions.
12. Discuss the factors that would establish criminal responsibility in a case where a defendant's actions directly lead to a victim's death, considering intervening causes and legal principles.

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